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CASE #	CASE NAME	HEARING NAME
CVME2404017	NAKKASHIAN VS TEMECULA INTERNATIONAL ACADEMY	MOTION FOR SUMMARY JUDGMENT OR IN THE ALTERNATIVE SUMMARY ADJUDICATION ON COMPLAINT FOR CIVIL RIGHTS OF CHANELLE NAKKASHIAN

Tentative Ruling: The Court declines to rule on the evidentiary objections pursuant to CCP § 437c(q) as they are not dispositive to the motion. Court will treat this motion as a Motion for Judgment on the Pleadings. Motion is sustained as to the Fourth and Seventh Causes of Action Without Leave to Amend. As to the remaining Causes of Action, Plaintiffs are granted 20 days leave to amend to correct any standing issues. Jury Trial set for 8-21-26 and the Mandatory Settlement Conference on 8-10-26 are advanced and vacated. Court will set a Trial Setting Conference on 11-10-26 8:30 am in M301.

MSJ/MSA as Motion for Judgment on the Pleadings - Many of the causes of action seek damages for injuries sustained by Jadore and Jaxsen, who are not parties to this matter. Plaintiffs do not have standing to pursue claims based on these injuries. They are not the real parties in interest because they did not suffer the injuries sustained by Jadore or Jaxsen. They fail to cite to any authority to support that they are the real parties in interest to injuries their children sustained. They do reference CCP § 372. However, this code section allows minors to pursue claims by having a guardian ad litem appointed by the court. In this matter, Jadore and Jaxsen have not been named as parties. CCP § 372 would allow Plaintiffs to represent the minors (not as counsel but to make decisions on their behalf), if they were named as parties and court approval was given. However, since the minors are not named as parties, CCP § 372 provides them with no authority to pursue the minors' rights. The court has the ability to do this because a motion for summary judgment necessarily includes a test of the sufficiency of the complaint. (*Prue v. Brady Co./San Diego, Inc.* (2015) 242 Cal.App.4th 1367, 1375-1376.)

Fourth and Seventh Causes of Action - Under Penal Code § 11172(a), "[n]o mandated reporter shall be civilly or criminally liable for any report required or authorized by this article, and this immunity shall apply even if the mandated reporter acquired the knowledge or reasonable suspicion of child abuse or neglect outside of their professional capacity or outside the scope of their employment." (Penal Code § 11172(a).) A mandated reporter includes "[a]n employee, volunteer, or governing board or body member of a school district, county office of education, charter school, or private school." (Penal Code § 11165.7(a)(1).) Under Penal Code § 11166(a), "a mandated reporter shall make a report to an agency . . . whenever the mandated reporter, in the mandated reporter's professional capacity or within the scope of the mandated reporter's employment, has knowledge of or observes a child who the mandated reporter knows or reasonably suspects has been the victim of child abuse or neglect." The term "reasonable suspicion" means that it is objectively reasonable for a person to entertain a suspicion, based upon facts that could cause a reasonable person in a like position, drawing, when appropriate, on the person's training and experience, to suspect child abuse or neglect." (Id. at (a)(1).) It does not "require certainty that child

abuse or neglect has occurred nor does it require a specific medical indication of child abuse or neglect; any 'reasonable suspicion' is sufficient." (*Ibid.*)

"In order to promote the purpose of the act to protect abused children, section 11172 provides that mandated reporters of child abuse are absolutely immune from liability." (*Robbins v. Hamburger Home for Girls* (1995) 32 Cal.App.4th 671, 679.) "The immunity extends even to negligent, knowingly false, or malicious reports of abuse." (*Arce v. Children's Hospital of Los Angeles* (2012) 211 Cal.App.4th 1455, 1484.) "Cases analyzing Penal Code section 11172 have concluded that the statute provides immunity for claims predicated on false and malicious reports of abuse as well as conduct committed in furtherance of diagnosing whether abuse occurred." (*Id.* at 1492.) Immunity under Penal Code § 11172 extends even to malicious or false reports of child abuse. (*Id.* at 1493.) If the conduct at issue is a form of protected reporting activity, the defendant is fully immunized from any claims arising from this conduct. (*Id.* at 1487.)

Standing - Only a real party in interest has standing to prosecute an action, except as otherwise provided by statute. A party who is not the real party in interest lacks standing to sue." (*Redevelopment Agency of San Diego v. San Diego Gas & Electric Co.* (2003) 111 Cal.App.4th 912, 920.) "A real party in interest ordinarily is defined as the person possessing the right sued upon by reason of the substantive law. 'The question of standing to use is one of the right to relief and goes to the existence of a cause of action against the defendant.'" (*Killian v. Millard* (1991) 228 Cal.App.3d 1601, 1605.) "As a general principle, standing to invoke the judicial process requires an actual justiciable controversy as to which the complainant has a real interest in the ultimate adjudication because he or she has either suffered or is about to suffer and injury of sufficient magnitude reasonably to assure that all of the relevant facts and issues will be adequately presented to the adjudicator." (*Holmes v. California Nat. Guard* (2001) 109 Cal.App.4th 297, 314-315.)

As stated above, many of the causes of action seek damages for injuries sustained by Jadore and Jaxsen, who are not parties to this matter. Plaintiffs do not have standing to pursue claims based on these injuries. They are not the real parties in interest because they did not suffer the injuries sustained by Jadore or Jaxsen. They fail to cite to any authority to support that they are the real parties in interest to injuries their children sustained. They do reference CCP § 372. However, this code section allows minors to pursue claims by having a guardian ad litem appointed by the court. In this matter, Jadore and Jaxsen have not been named as parties. CCP § 372 would allow Plaintiffs to represent the minors (not as counsel but to make decisions on their behalf), if they were named as parties and court approval was given. However, since the minors are not named as parties, CCP § 372 provides them with no authority to pursue the minors' rights.

Plaintiffs are correct that they are allowed to pursue claims where they were directly injured. However, the allegations regarding direct injuries are based on the report to CPS, which is protected by absolute immunity because Defendants are mandatory reporters. Plaintiffs also argue that they can assert claims based on *Marlene F. v. Affiliated Psychiatric Medical Clinic, Inc.* (1989) 48 Cal.3d 583, which discusses whether a parent can bring a negligent infliction of emotional distress cause of action against a therapist for molestation to their child. Negligent infliction of emotional distress is not an

independent tort; it is the tort of negligence to which the traditional elements of duty, breach of duty, causation, and damages apply.” (*Ess v. Eskaton Properties* (2002) 97 Cal.App.4th 120, 126.) Recovery for negligent infliction of emotional distress is typically permitted in two situations - referred to as “bystander” and “direct victim” claims. (*Id.* at 126-127.) “Recovery may be permitted in bystander case where the plaintiff is closely related to the victim of a physical injury, is present at the scene of the injury-causing event and is then aware that it is causing injury, and suffers emotional distress beyond that which would be anticipated in a disinterested witness.” (*Id.* at 127.) “Direct victim cases involve the breach of a duty owed to the plaintiff that was assumed by the defendant, imposed on the defendant as a matter of law, or arose out of a preexisting relationship between the two.” (*Id.*) To recover under a claim of negligent infliction of emotional distress where there is no personal physical injury, the plaintiff must suffer from serious emotional distress. (*Wong v. Jing* (2010) 189 Cal.App.4th 1354, 1377-1378.)

In *Marlene F.*, the court found that a direct victim claim could be brought because the therapist saw both the parents and the children and he undertook a duty to treat both the mothers and children, which he knew or should have known that his molestation of the children would directly injure and cause severe emotional distress to his other patients, the mothers. (*Marlene F.*, *supra*, 48 Cal.3d at 591.) “It bears repeating that the mothers here were the patients of the therapist along with their sons, and the therapist’s tortious conduct was accordingly directed against both. They sought treatment for their children – as they had the right, and perhaps even obligation, to do – and agreed to be treated themselves to further the purposes of the therapy. They were plainly entitled to recover for the emotional distress they suffered. (*Id.* at 591.) In this matter, there are no allegations in the Complaint or in Plaintiffs’ declarations that they directly observed any of the bullying or isolation to Jadore. As such, bystander liability is not a basis of liability. Plaintiffs also do not clearly allege such a basis of liability. Due to this, these arguments fail. Since the first, second, third, fifth, sixth, eighth, and ninth causes of action contain allegations of injuries that pertain to the children and Plaintiffs would like the ability to have the children pursue these claims, judgment on the pleading to these causes of action is sustained with leave to amend to add the children.

2.

CASE #	CASE NAME	HEARING NAME
CVME2506036	RESENDEZ VS IDEA LAW GROUP	DEMURRER ON 2ND AMENDED COMPLAINT FOR OTHER REAL PROPERTY BY IDEA LAW GROUP, PC IDEA LAW GROUP AND BY NEWREZ, LLC, BANK OF NEW YORK MELLON

Tentative Ruling: Demurrer by both Defendants sustained without leave to amend.

This is a foreclosure matter. On June 3, 2025 Plaintiff Gregory F. Resendez (“Plaintiff”) filed this action. He alleges that on February 10, 2006, Plaintiff recorded a grant deed for property located at 29093 Overboard Drive in Romoland (“property”). On May 12, 2025, IDEA Law Group recorded a Notice of Trustee’s Sale (“NOTS”) identifying it as the trustee and listing a sale date of June 11, 2025. Plaintiff alleged no Substitution of Trustee was ever recorded, granting power and authority for IDEA Law Group to act as